

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARISOL STEPHANIE RIVAS,

Petitioner

VS.

ELISEO ORTEGA,

Respondent

) Case Number: FDV-18-813731

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Marisol Stephanie Rivas (Mother) and Respondent Eliseo Ortega (Father) have one minor child together, Jeremiah (DOB 7/4/17, age 8). Mother has sole legal and physical custody of Jeremiah.
- 2) On 11/26/2025, Mother filed a request to suspend Father's visits until he received treatment and demonstrated stability and safe behavior. She stated that Father continues to drink, hit Jeremiah during a visit, was involved in a physical altercation with a group of men, was seeing Jeremiah only once or twice a month, that Jeremiah was afraid of Father, and that the paternal grandmother who was supervising the visits pursuant to the last court order, was no longer willing to be the supervisor because Father was "so disrespectful."
- 3) At a 3/3/2026 hearing, the Court ordered that Father shall have one-hour weekly visits through Rally Family Visitation Services (Rally) as well as texts, phone calls, or video calls with the child per Mother's discretion. The Court ordered the parties to reach out to Rally within 5 days of the

1 hearing and to file and serve update declarations at least 10 days before the next review hearing
2 of 6/2/2026.

- 3 4) Neither party has filed an update declaration and there is no indication that Rally visits have
4 begun.

5 **B. Findings and Orders**

- 6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child is the United States.
- 10 2) The Court maintains the current custody and parenting time order. The parties shall complete
11 their intake with Rally immediately if they have not yet done so, so that Rally visits may begin.
12 The matter is set for a further review hearing on **11/3/2026 at 9AM in Department 404**. The
13 parties shall file and serve update declarations at least 10 days before the review hearing
14 informing the Court how the Rally visits are going and to make any requests for any changes to
15 the current custody and parenting time order.
- 16 3) The Court will prepare the Findings and Order After Hearing.
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